

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUAICHUN LEI,

Petitioner

VS.

NAJIAN HUANG,

Respondent

) Case Number: FDI-24-799990

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS,
DATE OF SEPARATION; DISPUTE TRANSACTIONS; PROCEDURAL POTECTION 730 REP

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Huaichun Lei and Respondent Najian Huang. The parties were married on March 13, 2015. They share two minor children.
- 2) On 7/11/24, Petitioner filed a Petition for Dissolution listing the date of separation as 4/1/19.
- 3) On 8/16/24, Respondent filed a Response and Request for Dissolution listing the date of separation as 7/19/24. Respondent checked item 8a. on her Response, indicating a request for spousal support orders.
- 4) On 11/14/24, Respondent filed a Request for Order seeking child custody, visitation, and child support, but not spousal support. The child support request was later transferred to Department 416 (now Department 414).
- 5) On 5/22/25, the Court made a series of orders regarding businesses owned by Petitioner, Blue Mountain Payments (BMP) and N&H Investment LLC. The Court then stayed those orders on

1 11/26/25 and recommended that Respondent consider retaining a joint 730 expert for business
2 characterization and valuation.

3 6) On 7/1/25, the Court ordered Petitioner to pay Respondent guideline child support in the amount
4 of \$4,405.00 retroactive to 12/01/24 and payable on the first day of the based on Petitioner having
5 a 25% timeshare with the children.

6 7) On 2/24/26, Respondent filed Request for Order in which she seeks spousal support, attorney fees
7 and other miscellaneous relief. In particular, she seeks 1) a determination as to the date of
8 separation; 2) orders regarding disputed transactions, payroll and personal expenses; 3)
9 “procedural protections” regarding a section 730 expert report; and 4) \$10,000 in attorney’s fees
10 and costs. Finally, Respondent contends that Petitioner owes \$25,251.32 in child support arrears
11 but does not explicitly request any orders regarding the alleged arrears.

12 8) On 02/24/26, Respondent filed an Income and Expense Declaration in which she states the
13 following:

14 a. Income: \$10,000.00 per month.

15 b. Tax Filing Status: Married, filing separately.

16 c. 2 minor children (75% timeshare to Mother)

17 d. Health Insurance Premiums: \$100.00/month

18 e. Property Tax: \$1000.00/month (no mortgage payment is listed, nor is there any entry for
19 interest.)

20 f. Total Expenses: \$9600.00

21 g. Attorney Fees Paid: Section was left blank.

22 h. Daycare: \$1000.00/month

23 9) On 3/13/26, Petitioner filed Responsive Declaration opposing Respondent’s requested orders.

24 Petitioner asserts that Respondent has substantial monthly income and that his own ability to pay
25 spousal support is limited, as the current child support order is based on inflated income, and he is
26 paying \$1,100 in arrears in addition to \$4,400 in ongoing support. Petitioner contends there is no
27 income disparity warranting attorney’s fees and costs. He requests the Court reserve jurisdiction
28 over the date of separation, deny Respondent’s remaining requests as vague and unsupported, and
29 award \$5,000 in sanctions under Family Code section 271.

1 10) On 03/13/26, Petitioner filed an Income and Expense Declaration in which he states the
2 following:

3 a. Income:

4 i. Wages: \$5,500.00 per month.

5 ii. IHHS: \$2580.81

6 iii. Rental Income: \$385.52

7 iv. Self-Employed: \$274.30 (However, the Court thoroughly reviewed his P/L for
8 Blue Mountain Payments for 2025 show his profits less expenses totaled
9 \$355,128.12 for the 12-month period.) Therefore, it appears that his true
10 monthly gross is \$29,594.01.

11 v. N&H Investment LLC: \$4,626.19 per month.

12 b. Tax Filing Status: Married, filing separately.

13 c. 2 minor children (75% timeshare to Mother)

14 d. Health Insurance Premiums: \$100.00/month

15 e. Property Tax: \$1500.00/month (no mortgage payment is listed, nor is there any entry for
16 interest.)

17 f. Total Expenses: \$8,775.00

18 g. Attorney Fees Paid: \$71,312.50

19 h. Daycare: \$1000.00/month

20 11) On 3/16/26, Respondent filed a declaration with an attachment purportedly demonstrating that
21 Petitioner's claims of limited income are inaccurate and misleading. The declaration attaches
22 numerous financial documents.

23 12) On 3/19/26, Petitioner filed an objection to Respondent's 3/16/26 declaration on the basis that it
24 introduces new evidence on reply. Petitioner contends that Respondent's analysis of his income is
25 flawed and reiterates his request for section 271 sanctions against Respondent on the basis that
26 she has filed multiple requests for orders as a procedural tactic designed to delay proceedings and
27 increase Petitioner's attorney fees.

1 13) On 3/23/26, Respondent filed a declaration attaching further financial information meant to
2 demonstrate Petitioner's purported ability to pay temporary spousal support and need based
3 attorney's fees.

4 14) On 3/24/26, Petitioner filed an objection to Respondent's 3/23/26 declaration asserting it is
5 untimely.

6 15) On 4/27/26, Respondent filed a declaration with additional information regarding Petitioner's
7 finances.

8 16) At the prior 5/7/26 hearing, the Court continued the matter to 7/14/26 because the parties were set
9 for Mandatory Settlement Conference (MSC) on 7/10/26.

10 17) On 7/10/26, the parties appeared at MSC but did not reach an agreement.

11 18) On 7/14/26, the Court continued the matter to 8/13/26 on the Court's own motion.

12 19) On 8/3/26, Petitioner filed a declaration asserting that the matter should be set for trial and the
13 Court agreed that the matter should be set for trial at the prior 5/7/25 hearing. Petitioner attached
14 the transcript wherein the Court states its intent to set the matter for trial if the parties do not
15 reach a settlement.

16 20) On 8/3/26, Petitioner filed an updated Income and Expense Declaration.

17 21) On 8/3/26, Respondent filed a declaration regarding Petitioner's available income and ability to
18 pay temporary spousal support and the commencement date of temporary spousal support.

19 22) On 8/3/26, Respondent filed an updated Income and Expense Declaration.

20 **B. Findings and Order**

21 1) **The parties are ordered to appear** and shall be prepared to: (a) discuss their time estimate for
22 trial (i.e., number of days); and (b) inform the Court of the proposed number of witnesses they
23 intend to present.
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